

ORDER SHEET

W.P. No.7634 of 2019

Government of the Punjab, etc.

07.01.2025 M/s. Zafarullah Khan Khakwani, ASC alongwith Mahar Ahmad Nawaz Sial, Sammar Abbas, Mian Muhammad Shahid Riaz and Ms. Fatima Safeer, Advocates for the Petitioner. Malik Muhammad Tariq Rajwana, ASC assisted by Muhammad Ibtasam Ahmad, Advocate with Malik Mansoor Ahmad, PD (AA), NHA and Muhammad Javed Deputy Director, NHA, Multan.

Ch. Muhammad Shahzad Aslam, Deputy Attorney General for Pakistan, Mr. Kashif Nadeem Malik and Rana Ghulam Hussain, Assistant Attorneys General.

Syed Shahid Hussain, Senior Legal Advisor, MDA & PHA, Multan.

Malik Masroor Haidar Usman and Malik Muhammad Bakhsh Khakhi, Assistant Advocates-General with Rana Saleem Ahmad, Special Secretary, HUD & PHED South Punjab, Multan; Engr. Amjad Shuaib Tareen, Secretary Services S&GAD, South Punjab, Multan; Ghulam Mustafa, Addl. Secretary, LG & CD, South Punjab, Multan; with Ms. Sadia Law Officer, S&GAD, Ms. Maryam Khan, Commissioner Multan Division, Muhammad Ali Bukhari, Deputy Commissioner, Multan and Rana Shahid Manzoor, Senior Law Officer, Commissioner Office.

Mr. Asif Rauf, D.G. Parks and Horticulture Authority, Multan.

Mr. Shamim Ahmad Khan, Deputy Director Environment, Toba Tek Singh on behalf of D.C. T.T. Singh and Mr. Asfand Yar, Assistant Commissioner Shorekot on behalf of Deputy Commissioner, Jhang.

Mr. Dilawar Khan, D.G. PHA on behalf of Deputy Commissioner, Faisalabad.

Mr. Nasrullah Khan Niazi, Additional Registrar (Judicial).

C.M. NO.04 OF 2025 AND MAIN CASE
ALONGWITH WP NO.7790 OF 2019

Through this Application (C.M. No.04 of 2025), the Petitioner seeks compliance of the order dated 12.02.2020, passed by this Court in the titled case i.e. W.P. No.7634 of 2019 reported as Muhammad Tahir Jamal Advocate v. Government of Punjab etc. (PLD 2020 Lahore 407) (the “**Tahir Jamal Case**”), whereby directions were issued regarding provision of basic amenities to the public, including the plantation of trees at service areas along the Lahore-Abdul Hakeem Motorway (the “M-3”).

2. Whereas in the connected case i.e. W.P. No.7790 of 2019, the Petitioner sought directions for the implementation of the National Climate Change Policy 2012, National Forest Policy 2015, and the Punjab Plantation and Maintenance of Trees Act, 1974, specifically in the city of Multan.

3. As noted in the preceding order dated 06.01.2025, on 01.02.2020, the then Hon’ble Chief Justice of Pakistan expressed grave concern over the environmental sustainability of Multan, highlighting critical issues such as air pollution and the pressing need for urban forestry. In response, a meeting was convened on 06.02.2020, chaired by the then Hon’ble Senior Judge of this Bench, with participation of Hon’ble Judges of this Court and officers/officials from other relevant departments. Another meeting followed on 19.02.2020 to review compliance reports as directed by the then Hon’ble Chief Justice. The Commissioner’s office submitted its last report on 15.02.2022, indicating that the National Highway Authority (NHA) would undertake tree plantation along the M-3 and

other areas. This Court remains resolute in upholding the directives of the Hon'ble Chief Justice and ensuring the preservation of Multan's environment for future generations.

4. This Court, emphasizing the urgency of urban forestry initiatives has determined that immediate and sustained measures are necessary to address worsening air quality, protect climate justice and uphold intergenerational rights. Under the doctrine of *continuous mandamus* and pursuant to the order dated 06.01.2025; this Court, as a member of the Committee for Enhancing Civic Engagement Equitys Environmental Justice (CEEEJ) in Pakistan, established under the directions of the Hon'ble Supreme Court, is obligated to ensure compliance with its orders to protect fundamental rights. These rights now include the right to a clean and healthy environment, as enshrined in Article 9A of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution") inserted through Section 16 of the Constitution (Twenty-sixth Amendment) Act (the "Twenty-sixth Amendment"). Article 9A reads as follows:

"9A. Clean and healthy environment.— Every person shall be entitled to a clean, healthy, and sustainable environment."

5. To strengthen the positive steps already initiated, it is noted that on 10.11.2024, the Government of Punjab declared an environmental health emergency in response to a sharp rise in air pollution in Multan, with the Air Quality Index (AQI) reaching a hazardous level of 700, the worst in Pakistan. This alarming situation, caused by toxic winds and local emissions, prompted the immediate closure of schools and public facilities. The health risks, including a

significant increase in respiratory and smog-related illnesses, necessitated urgent intervention. The declaration underscored the Government's commitment to safeguarding public health and mitigating environmental risks. Hence, **Tree Plantation** remains a crucial element of addressing Multan's air pollution crisis and aligns with this Court's constitutional mandate to protect the right to a clean and sustainable environment under Article 9A, with the ultimate goal of transforming Multan into a "**Green City.**"

6. While appreciating the efforts of relevant authorities and State functionaries to combat air pollution and promote climate justice in Multan, this Court emphasizes **the need to prioritize tree plantation as an emergency measure.** Such action is imperative for improving air quality and ensuring the long-term sustainability of Multan's environment.

7. Pursuant to the order dated 06.01.2025, Engr. Amjad Shuaib Tareen, Secretary Services S& GAD, South Punjab appeared and has submitted written report on behalf of Additional Chief Secretary, South Punjab Multan, which shows that all the twelve departments, other than Central Character Departments are being directed for a massive tree plantation in South Punjab. Moreover, the Additional Secretary, (I&C), S&GAD, South Punjab, Multan would be the focal person on behalf of South Punjab Secretariat and further Focal persons shall also be nominated to cope with the issue in proper manner.

8. Ms. Maryam Khan, Commissioner Multan Division alongwith Muhammad Ali Bukhari, Deputy Commissioner, Multan; appeared and submitted that in accordance with the Government's own policies and directives, they had taken

significant steps to control the hazardous smog situation. These measures included the declaration of an environmental health emergency on 10th November, 2024, the immediate cessation of brickkilns and tree plantation. These actions were taken in compliance with both the Supreme Court's judgments and the directions of this Court, particularly the directions issued by the then Hon'ble Chief Justice of Pakistan, during his visit to Multan on 01.02.2020.

9. Ms. Maryam Khan, Commissioner Multan Division, further stated that in alignment with the innovative Mivaki forest concept from Japan, two Mivaki forests have been successfully established in Multan. One is located in Aam Khas Bagh and the other in Qila Kohna Qasim Bagh. The Mivaki forest concept focuses on creating sustainable, self-sufficient ecosystems through natural methods, using a diverse mix of native plants and trees. This approach aims to restore biodiversity, enhance soil health, and contribute to the long-term environmental resilience of the region.

10. Rana Saleem Ahmad, Special Secretary, HUD & PHED South Punjab also submitted his report by stating that under First Schedule, Serial No.18A, of the Punjab Rules of Business, 2011 (the "Rules of Business"), the Secretary, HUD and PHED, South Punjab has following administrative authorities, which read as follows:

- (i) *Bahawalpur Development Authority;*
- (ii) *Koh-e-Suleman, Development Authority;*
- (iii) *Parks and Horticulture Authority, Dera Ghazi Khan;*
- (iv) *Parks and Horticulture Authority, Bahawalpur;*
- (v) *Dera Ghazi Khan Development Authority;*
- (vi) *Punjab Housing and Town Planning Agency South Punjab;*

- (vii) *Multan Development Authority;*
- (viii) *Parks and Horticulture Authority, Multan.*

Hence, in order to mitigate the risk of air pollution, smog contamination of air, land and water; and to ensure the health safety, welfare and property of the people, the Housing & Urban Development Department, has taken following actions:

- *The DG, PHA, Multan has informed that he has planted some 14825 trees during last year in his area of jurisdiction.*
- *The DG, PHA, DG Khan has planted some 28471 trees during last financial year 2024-24 in her area of jurisdiction.*
- *The DG, PHA, Bahawalpur has planted some 27,100 trees during last year in her area of jurisdiction. The trees planted include Neem, Amaltas, Sukh Chain, Bottole Brush, different palms and Arjun.*
- *Awariness campaigns, walks and annual flower exhibition were conducted by the three PHAs besides regular activities of their organizations.*
- *The DG, MDA, conducted a meeting with the owners/developers of various Housing Schemes dated 04.10.2024 regarding awareness of trees benefits and their positive impact on environment.*
- *Plantation drive in various private housing schemes by MDA. The details of Plantation of 10560 plants is mentioned in the report.*
- *The Koh-e-Suleman Development Authority has reported to plant 450 pine trees, 500 Zaitoon trees and 2000 Bushes in its area.*
- *In this way some 81906 trees and 2000 bushes have been planted by the department in the last one year.*

11. The report submitted by the Special Secretary, HUD & PHED South Punjab, highlights the commendable steps taken by the Housing & Urban Development Department and its affiliated authorities to combat environmental challenges. These include the plantation of 81,906 trees and 2,000 bushes across the jurisdictions of Multan, Dera Ghazi Khan, Bahawalpur and other areas under the department's

purview. It is pertinent to mention here that this Court's jurisdiction is confined to Multan Division, with a specific focus on Multan City, for achieving the objective of transforming it into a **"Green City."** As mandated by Article 199(1)(1A) of the Constitution, introduced through the Twenty-sixth Amendment, this Court cannot exercise jurisdiction or issue directives beyond the matters explicitly raised in the petition. For ready reference Article 199(1)(1A) reads as follows:

"For removal of doubt, the High Court shall not make an order or give direction or make a declaration on its own or in the nature of suo motu exercise of jurisdiction beyond the contents of any application filed under clause (1)."

Thus, while the broader initiatives reported are noteworthy, this Court's intervention shall remain restricted to addressing environmental concerns within **Multan City and the Motorway (M-3)**, in line with its constitutional mandate and the scope of the present proceedings.

12. Thereafter, Syed Shahid Hussain, Senior Legal Advisor, MDA & PHA, Multan has submitted report on behalf of the Director General, PHA, Multan, which mentions that:

"... the GOP has already declared an environmental health emergency following an alarming surge in air pollution in Multan. This led to the immediate closing of the school and facilities in the city with the highest AQI reaching 700. The Punjab environmental Protection Agency invoked section 06 of the EPA Act 1997 which led to ban on the construction activities, restriction of heavy transport and suspension of operation of brick kilns."

Parks & Horticulture Authority (PHA) Multan in order to mitigate the risk of air pollution, Smog contamination of air, land, and water, and to ensure the health safety, welfare, or property of the people of Multan has initiated following actions.

Extensive plantation drive was executed by PHA Multan throughout the city. The details of plantation of 14,825 plants is mentioned in the table(in the report).

The Court appreciates the efforts of the DG, PHA, Multan, and the department's proactive measures to address environmental concerns; however, the worsening air quality and environmental degradation demand sustained, long-term efforts. While the current actions are commendable, the focus must expand to include intensified plantation drives, periodic monitoring of the air quality index, progress reporting, active engagement of public and private stakeholders in sustainable practices, and consistent enforcement of environmental laws, particularly during peak smog seasons. The Court underscores the need for a cohesive, integrated approach to environmental management to ensure the long-term sustainability of Multan's ecosystem and uphold the constitutional right to a clean and healthy environment for future generations.

13. Malik Muhammad Tariq Rajwana ASC alongwith Malik Mansoor Ahmad, PD (AA), NHA and Muhammad Javed Deputy Director, NHA, Multan, appeared and submitted their written report. The report outlines that in compliance of order dated 12.02.2020, passed by this Court in this case reported as **PLD 2020 Lahore 407 (mentioned above)**, the Motorway (M-3) has a highly sustainable horticulture plan, covering all interchanges, rest areas, service areas and lay-bay loops. The greening process

includes embankment slopes on both sides from toe to the fence. The open spaces on both sides have been greened by planting trees. The selected tree species are friendly and well-adapted to the local environmental conditions. Additionally, turf-forming grasses have been planted to control rain erosion on the embankment slopes. He further mentioned that a Joint Venture has been formed for plantation and slope grassing with CR-20G and ZKB. M/s. ZKB is responsible for tree plantation and slope grassing over 92 kilometers (RD 917-1009), while M/s. CR-20G is tasked with covering 138 kilometers (RD 1009-1147). The trees have been arranged in a triangular fashion, with large trees at the back near the fence, medium-sized trees in the middle, and smaller trees at the front.

14. This initiative by the National Highway Authority (NHA) is truly commendable. The sustainable horticulture plan, with careful tree selection and planting arrangements, not only enhances the beauty of the motorway but also helps in preventing soil erosion and improving the local environment. The joint venture with M/s. CR-20G and M/s. ZKB to implement this plan shows a strong commitment to environmental conservation and community well-being.

15. Mr. Dilawar Khan, D.G. PHA on behalf of Deputy Commissioner, Faisalabad; Mr. Shamim Ahmad Khan, Deputy Director Environment, Toba Tek Singh on behalf of D.C. T.T. Singh; Mr. Asfand Yar, Assistant Commissioner Shorkot on behalf of Deputy Commissioner, Jhang; also appeared and unanimously submitted that they are taking measures to enhance the plantation of trees and improve the rest areas within their jurisdictions along the Motorway (M-3). They are focused on making these areas more comfortable and ensuring the provision of basic necessities for the public

in compliance of order dated 12.02.2020, passed by this Court in this case reported as **PLD 2020 Lahore 407 (mentioned above)**.

16. This Court observes that while the Government and relevant departments have already taken commendable steps to tackle the pressing issue of environmental degradation, further measures are required to fully resolve the concerns raised in these cases. It is pertinent to mention here that this Court in the judgment reported as “Zafar Khizer v. Federation of Pakistan” (**PLD 2023 Lahore 164**) has developed the concept of “curate’s egg”, which has already been developed by the English Courts to show some of the **good** and some of the **bad** parts in the judgment. The relevant part of the judgment is as under:

“In 1895 the London satirical magazine Punch published a famous cartoon in which a bishop says to a curate at breakfast, ‘I’m afraid you’ve got a bad egg, Mr. Jones’. The curate replies, ‘Oh no, my lord, I assure you that parts of it are excellent’.”

SHORT ORDER

*For detailed reasons to be recorded later on and subject to what is outset therein by way of amplification, today’s short order is aimed at disposing the instant writ petition in terms elaborated herein below. The **good news** is that this Court **appreciates** the effort made by the Petitioner with regard to the betterment of legislation on Pakistani child citizens’ fundamental rights, including right to life and dignity, right to proper growth and development through strict enforcement of their*

*right to nutritious food and education. Whereas the **bad news** in one aspect, at least for the Petitioner, is that he, prior to knocking the door of this Court, has not approached the concerned governmental authorities for the enforcement of such fundamental rights under the relevant laws because in their report & para-wise comments, the answering Respondents have mentioned the proper legislation introduced by the legislator from time to time for the protection and expansion of said fundamental rights (of child citizens). This one aspect aside, it is a thoroughly good egg. The concept of “curate’s egg” has been developed by the English Courts.”*

In this case, beside one aspect, it is a thoroughly good **Curate’s Egg**. The **good part** is that this Court acknowledges and confirms the proactive actions already undertaken, including extensive plantation drives, enforcement of environmental regulations and legislative initiatives aimed at combating air pollution and environmental degradation. These steps align with the constitutional mandate to protect the public’s right to a clean and healthy environment. However, the **not-so-good** part lies in the insufficiency of current efforts to comprehensively address the escalating environmental challenges in Multan. While the measures taken thus far are undoubtedly valuable, they fall short of fully mitigating the risks of air pollution, smog contamination, and environmental hazards. Additional steps, including enhanced legislation, broader implementation of plantation

initiatives and stricter enforcement mechanisms, remain necessary to achieve the desired outcomes. Overall, like the curate's egg, this case reflects the gaps that still require attention, underscoring the need for sustained, integrated efforts to safeguard the environment and ensure long-term ecological sustainability in Multan.

17. As noted in the order dated 06.01.2025, this Court will seek guidance from judgments of the Hon'ble Supreme Court of Pakistan reported as "Province Of Sindh through Chief Minister and others Vs. Sartaj Hyder and others" (2023 SCMR 459), "Collector Of Customs, Model Customs Collectorate, Peshawar Vs. WaseefUllah and others" (2023 SCMR 503), D. G. Khan Cement Company Ltd. V. Government Of Punjab through Chief Secretary, Lahore and others (2021 SCMR 834), Shah Zaman Khan and others Vs. Government of Khyber Pakhtunkhwa through Chief Secretary, Peshawar and others (PLD 2023 Supreme Court 340) and Public Interest Law Association of Pakistan registered under the Societies Act, 1860 through authorized person Chaudhry Awais Ahmed Vs. Province of Punjab through Chief Secretary, Civil Secretariat, Lower Mall, Lahore and others (2023 SCMR 969). Moreover, the judiciary has emerged as an important factor in the fight against climate change. Courts in Pakistan have never been reluctant to play their part in identifying environmental/climate issues and putting forth efforts to deal with them. In 1994 when "environmental constitutionalism" was yet a novel concept, the Supreme Court of Pakistan in case titled Ms. Shehla Zia and others Vs. Wapda (PLD 1994 Supreme Court 693) observed that "*The rule of precautionary policy is to first consider the*

welfare and safety of the human beings and the environment ...Our need is greater as it is bound to affect our economic development, but in the quest of economic development one has to adopt such measures which may not create hazards to life, destroy the environment and pollute the atmosphere. ...” This Court in the judgment reported as Sheikh Asim Farooq V. Federation of Pakistan and others (PLD 2019 Lahore 664) has observed that “Climate change is likely to have multi-faceted adverse effects on the ecosystem as a whole, particularly on the already vulnerable forestry sector in Pakistan. The most likely impacts of climate change will be decreased productivity, changes in species composition, reduced forest area, unfavorable conditions for biodiversity, higher flood risks Government to take the following policy measures to conserve, restore and protect the biological diversity of Pakistan: (a) encourage empirical research on flora and fauna in the context of their responses to current and historical climatic changes; (b) set National Biodiversity Indicators and provide the requisite financial resources for implementation of the Biodiversity Action Plan (BAP); (c) establish gene banks, seed banks, zoos and botanical gardens to conserve the biological diversity of valuable species; (d) Integrate conservation and protection of biological diversity into various disciplines such as forestry and marine and pastures; (e) encourage involvement of local communities in conservation and sustainable use of biodiversity; (f) take necessary measures to establish nature reserves in areas that are rich in biodiversity to preserve their existence;

(g) establish protected areas in all vulnerable ecosystems, particularly in coastal and marine areas; (h) ensure that "ecosystem based adaptation" is part of an overall climate change adaptation strategy at all levels (national to local); and (i) assist genetically impoverished species or those that have important ecosystem functions by providing natural migration corridors as well as assisted migration." Further reliance is placed on the judgments reported as Mian Muhammad Asif V. Superintendent of Police and others (PLD 2020 Lahore 137), Raja Zahoor Ahmed and others V. Capital Development Authority through Chairman and others (2022 SCMR 1411) and Muhammad Ahmad Pansota and others Vs. Federation of Pakistan and others (PLD 2020 Lahore 229).

18. This Court aims to achieve the goals through a legal heuristic approach of conjective bias based on aforesaid practical judgments which provide three general perspectives in law i.e. **Purposiveness, Justice and Legal Certainty** under the prevailing Laws. Hence, in view of the the aforementioned facts and circumstances and to ensure continuous compliance of the judgments/orders of this Court, Engr. Amjad Shuaib Tareen, Secretary Services S& GAD, South Punjab, and Ms. Maryam Khan, Commissioner Multan Division, are directed to establish a comprehensive and coordinated framework for environmental management to enhance the greenery of Multan City and transform it into a "Green City" with the Motorway (M-3) being developed as a more facilitative and environment-friendly "Green Corridor". This mechanism should include the appointment of focal persons in each relevant department, with an ongoing collection of applications and

recommendations from stakeholders; and a structured process for obtaining and reviewing progress reports from all concerned departments on monthly basis. The aim is to facilitate transparency, coordination and accountability, thus ensuring effective execution of tree plantation and other environmental initiatives in the region.

19. In light of the commitments made by all the State functionaries for the protection and improvement of Multan's environment, this Court, under the doctrine of *continuous mandamus*, directs that monthly progress reports be submitted by the relevant authorities jointly before the Deputy Registrar (Judicial) of this Court. These reports shall detail the steps taken towards implementing the Court's previous orders, particularly those related to air quality improvement, tree plantation, and the overall environmental strategy for Multan. They are further directed to ensure that these reports are submitted in a timely manner, whereupon the office shall fix the case on the first **Tuesday of every month** to monitor the progress and for further guidance where necessary.

20. This collective endeavor will exemplify the commitment of all stakeholders to the vision of a greener, healthier, and more sustainable future for the region. The Court acknowledges their dedication and hard work and encourages the continuation of these efforts to ensure that the objectives of the "Green City" Multan and the "Green Corridor" Motorway (M-3) are fully realized.

21. Re-list on **21.01.2025** alongwith W.P. No.7790/2019.
Copy **dasti** on payment of usual charges.

(JAWAD HASSAN)
JUDGE